

21STLC00813 21STLC00813

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Division: Civil Law and Motion

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Case Number: 21STLC00813 Hearing Date: September 17, 2026 Dept: 26

TENTATIVE RULING:

Defendant

Lisa Leann Sunshine Madrigal's Motion to Set Aside Default and Default Judgment is denied.

Analysis:

On January 29, 2021, Plaintiff Covina Pines Homeowners Association ("Plaintiff") filed this action against Defendants Starr Lynn Cano aka Starr L. Cano ("Defendant Cano") and Lisa Leann Sunshine Madrigal ("Defendant Madrigal"). Following the lack of any responsive pleading by Defendants, the Court entered their default and default judgment on March 29, 2021 and May 6, 2021, respectively.

Defendant Cano, in propria persona, filed a Motion for Order Vacating and Setting Aside Entry of Default and Default Judgment, which the Court denied on January 8, 2026. (Minute Order, 01/08/26.) On January 14, 2026, Defendant Madrigal, also in propria persona, filed a Motion to Set Aside Default and/or Default Judgment. The Court granted Defendant Madrigal's first Motion to Set Aside on March 5, 2026 and set an Order to Show Cause Re: Dismissal of Action for Failure to Serve Defendant within Three Years of Filing of the Complaint. (Minute Order, 03/05/26.) Prior to the Order to Show Cause, Plaintiff filed Proof of Substitute Service on April 3, 2026.

Following Defendant Madrigal's failure to file a response to the action again, the Court entered her default on April 30, 2026. The Order to Show Cause was discharged on May 7, 2026 and Defendant filed an Answer on

May 12, 2027. The Court entered default judgment against Defendant Madrigal on July 9, 2026.

Defendant filed the instant Motion to Set Aside/Vacate Default and/or Default Judgment on August 17, 2026. Plaintiff filed an opposition on September 2, 2026.

Discussion

Defendant Madrigal moves to vacate the default and default judgment pursuant to Code of Civil Procedure section 473, subdivision (b). Under that section, an application for relief must be made within a reasonable time, no more than six months after entry of the order from which relief is sought, and must be accompanied by an affidavit of fault attesting to the moving party's or counsel's mistake, inadvertence, surprise or neglect. (Code Civ. Proc., § 473, subd. (b); English v. IKON Business Solutions (2001) 94 Cal.App.4th 130, 143.) The six-month deadline is jurisdictional and not subject to tolling. (Manson, Iver & York v. Black (2009) 176 Cal.App.4th 36, 42.)

The Court's March 5, 2026 order vacating the initial default set an Order to Show Cause re Proof of Service for May 7, 2026. Plaintiff initiated service on Defendant Madrigal by substitute service within a week of that order, delivering the papers to her husband on March 12, 2026, and mailing them to her residence the next day. (Proof of Substitute Service, 04.03.2026.) Plaintiff did not seek to have default entered until April 29, 2026, which the Clerk entered the same day. (Default, 04/30/26.) Defendant Madrigal appeared at the May 7, 2026 show-cause hearing and was advised that she was again in default. She nevertheless filed an Answer to the Complaint on May 12, 2026, and did not move to vacate default or default judgment until filing this Motion on August 17, 2026. Her declaration states that she did not begin to draft the motion until she received notice that Judgment had been entered on July 9, 2026. (Motion, Madrigal Decl., ¶12.) The three-and-a-half month delay between learning of the default and filing this Motion is unreasonable. Defendant Madrigal had previously been in default and moved to vacate. It is not clear to the Court why there was any misunderstanding about the implications of that status that would make the delay reasonable.

Setting aside the issue of untimeliness, the Motion is supported by a declaration in which Defendant Madrigal attests that she was confused about the procedural posture of the case after the Court granted her first Motion to Set Aside, stating that she “was confused about what I was required to do next after the March 5 ruling and the new service,” and that she “mistakenly believed that the already-pending court proceedings would address what [she] needed to do next and [she] did not understand that [she] was required to file another responsive pleading within the applicable response period.” (Motion, Madrigal Decl., ¶4.) Defendant Madrigal does not dispute being served with the Summons and Complaint in March 2026. (Id. at ¶¶3-4.) Defendant Madrigal filed an Answer on May 12, 2026, after her default had been entered. (Id. at ¶7.)

Defendant Madrigal's misunderstanding of procedural requirements is not a cognizable “mistake” under Code of Civil Procedure section 473, subdivision (b). “Mistake is not a ground for relief under section 473, subdivision (b), when it ‘is simply the result of professional incompetence, general ignorance of the law, or unjustifiable negligence in discovering the law....’ (8 Witkin, Cal. Procedure (5th ed. 2008) Attack on Judgment in Trial Court, § 155, p. 749.)” (Hearn v. Howard (2009) 177 Cal.App.4th 1193, 1206.) There are no exceptions to this principle for pro se litigants. (See Rappleyea v. Campbell (1994) 8 Cal. 4th 975, 979 (“Procedural law cannot cast a sympathetic eye on the unprepared, or it will soon fragment into a kaleidoscope of shifting rules.”) Rather, the Court has to be able to find that a litigant's neglect was “such as might have been the act of a reasonably prudent person under the same circumstances.” (Hearn, 177 Cal.App.4th at 1206.) The Court cannot make that finding here. The Summons clearly states that a response to the action must be made within 30 days of service. Defendant's Motion does not address this language. Nor does Defendant Madrigal point to anything communicated to her by a clerk or Plaintiff to suggest that she had no need to timely file a responsive pleading after being served. (See Rappleyea, 8 Cal. 4th at 979 (reliance on misinformation from clerk and plaintiff rendered mistake excusable.) Defendant Madrigal's assumption that she could neglect to respond until she was told what to do – especially after her default had been previously entered – and disregard of the clear mandate of the Summons, amounts to general ignorance of the law and unjustifiable negligence in discovering the law. This kind of error is not grounds to vacate the entry of default or default judgment.

Conclusion

Therefore, Defendant

Lisa Leann Sunshine Madrigal's Motion to Set Aside Default and Default Judgment
is denied.

Judicial Assistant to give notice.